



ગુજરાત ગુજરાત GUJARAT

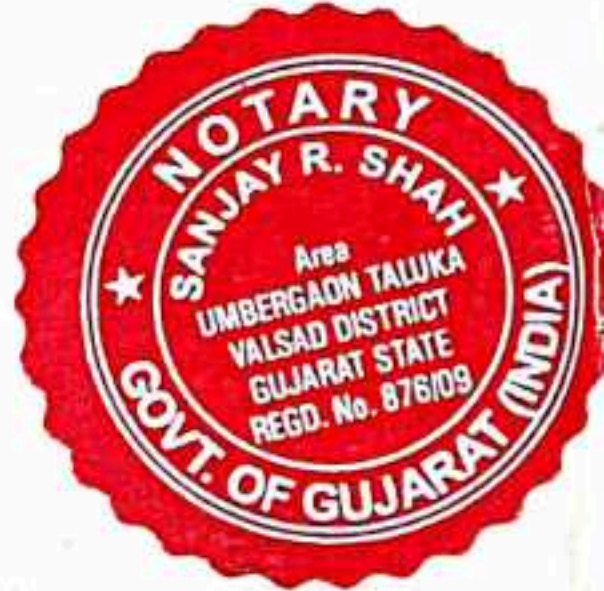
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... નં. ૬૭૫૦ તા ૧૭/૧૨/૧૪ દર ૧૦૦/- રૂ. અને
૩૧ ૨૦૧૧ નો સ્ટેમ્પ જે સાંધાણ સાથે
૩૧ ૨૦૧૧ રાંકે ૩૧
જે રૂ. ૧ લાખ ૦૦૦/- થી વધુની રકમની લાવવામાં
રહે. ઉમરગામ તા. ઉમરગામ નો લેણાણ આપ્યો છે

હસ્તે મમ્મન લાગી

સુધાની એ. એસ.
સ્ટેમ્પ વેન્ડર, ઉમરગામ
લા.નં ૩/૯૬

લેનારની સહી



TRUST DEED FOR UES AGRATHA EDUCATION FOUNDATION

THIS TRUST DEED FOR A PUBLIC CHARITABLE TRUST EXECUTED AT
UMARGAM, GUJARAT ON THISTWENTY-THIRD DAY OF JANUARY, 2015
BY AND BETWEEN:

1. SHRI RAMANLAL R. BHARATIYA, AN ADULT CITIZEN OF INDIA,
PRESENTLY RESIDING AT MAIN BAZAAR, AT &
POST - UMBERGAON - 396170, GUJARAT, (CELL NO. 8141185848),
PARTY OF THE FIRST PART, (HEREINAFTER ALSO CALLED THE
SETTLOR),

Sanjanwalam.
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2. DR. PRABODH H. SANJANVALA, AN ADULT CITIZEN OF INDIA, PRESENTLY RESIDING AT NEAR STATE BANK OF INDIA, MAIN ROAD, AT & POST – UMBERGAON – 396170, GUJARAT (CELL NO. 9537232304), PARTY OF THE SECOND PART,

3. SHRI KIRTIKUMAR S. GANDHI, AN ADULT CITIZEN OF INDIA, PRESENTLY RESIDING AT 6. KRISHNA, N.S. ROAD NO. 11, J.V.P.D. SCHEME, MUMBAI-400049 MAHARASHTRA, (CELL NO.: 9867697618), PARTY OF THE THIRD PART,

4. SHRI ISHWAR G. BARI, AN ADULT CITIZEN OF INDIA, PRESENTLY RESIDING AT OLD UMBERGAON, BARIYAWAD, AT & POST – UMBERGAON – 396170, GUJARAT, (CELL NO. 9925633377), PARTY OF THE FOURTH PART,

5. SHRI SANDEEP K. GANDHI, AN ADULT CITIZEN OF INDIA, PRESENTLY RESIDING AT 6. KRISHNA, N.S. ROAD NO. 11, J.V.P.D. SCHEME, MUMBAI-400049, MAHARASHTRA, (CELL NO. 9892742735), PARTY OF THE FIFTH PART,

6. SHRI ULHAS I. TANDEL, AN ADULT CITIZEN OF INDIA, PRESENTLY RESIDING AT MIDDLE STREET, NEAR MAHADEV NAGAR SOCIETY, AT & POST – UMBERGAON – 396170, GUJARAT, (CELL NO. 9825155117), PARTY OF THE SIXTH PART,,

7. SHRI BANKIM K. SHAH, AN ADULT CITIZEN OF INDIA, PRESENTLY RESIDING AT SHRINATH CO-OP. HSG. SOC. LTD., SECOND FLOOR, NEAR STATE BANK OF INDIA, MAIN ROAD, AT & POST – UMBERGAON – 396170, GUJARAT, (CELL NO.: 9824145688), PARTY OF THE SEVENTH PART,

8. SHRI KIRAN S. MEHTA, AN ADULT CITIZEN OF INDIA, PRESENTLY RESIDING AT 401, AVISHKAR, S.V. ROAD, ANDHERI (WEST) MUMBAI-400058, MAHARASHTRA, (CELL NO.: 9820343348) PARTY OF THE EIGHTH PART,

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9. DR. SATISH M. SANJANVALA, AN ADULT CITIZEN OF INDIA, PRESENTLY RESIDING AT 101, JAI BHUVANESHWARI HOUSING SOCIETY, SAHAJI RAJE MARG, VILE PARLE (EAST) MUMBAI-400057, MAHARASHTRA, (CELL NO.: 9819986291), PARTY OF THE NINETH PART,

10. SHRI MADHUSUDAN N. MEHATA, AN ADULT CITIZEN OF INDIA, PRESENTLY RESIDING AT OPP. RAILWAY STATION, AT & POST – SOLSUMBA – 396165 UMBERGAON, GUJARAT, (CELL NO.: 9819986291), PARTY OF THE TENTH PART,

11. SMT. SHAILA SANDEEP GANDHI, AN ADULT CITIZEN OF INDIA, PRESENTLY RESIDING AT 6. KRISHNA, N.S. ROAD NO. 11, J.V.P.D. SCHEME, MUMBAI-400049, MAHARASHTRA, (CELL NO.: 9819877906), PARTY OF THE ELEVENTH PART,

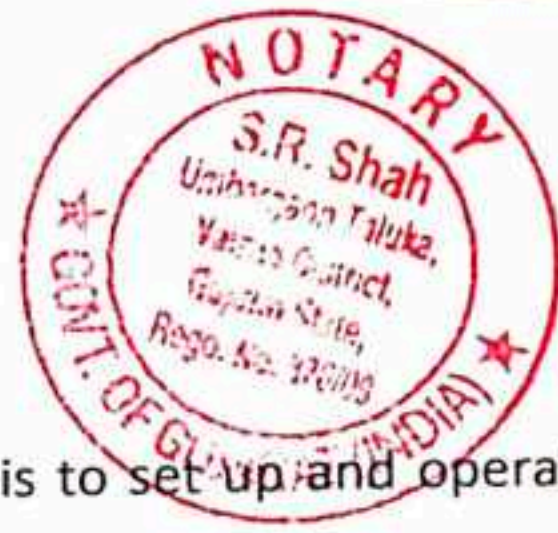
12. SHRI PRADEEP D. PIMPUTKAR, AN ADULT CITIZEN OF INDIA, PRESENTLY RESIDING AT SARKARWADI, AT & POST-SOLSUMBA, UMBERGAON-396165, GUJARAT, (CELL NO.: 9879474944), PARTY OF THE TWELFTH PART AND

13. SHRI HITENDRA C. DESAI, AN ADULT CITIZEN OF INDIA, PRESENTLY RESIDING AT RATAN TERRACE, 23, 2ND FLOOR, T.H. KATARIA MARG, MATUNGA (WEST), MUMBAI-400016, MAHARASHTRA, (CELL NO.: 9819651460), PARTY OF THE THIRTEENTH PART

(WHEREAS THE PARTIES OF THE SECOND TO THE THIRTEENTH PARTS HEREINAFTER ALSO COLLECTIVELY CALLED THE FIRST TRUSTEES OR TRUSTEES AND INDIVIDUALLY BY THEIR RESPECTIVE FIRST NAMES).

WHEREAS:

1. UMARGAM EDUCATION SOCIETY (HEREINAFTER CALLED UES) is a Society registered under the Society's Registration Act, 1860.
2. UES is also registered with the Charity Commissioner under registration number F/99/Valsad.



3. The SETTLOR is the present Trustee of UES.
4. The main object of the UES as per its Charter is to set up and operate educational institutes, schools and colleges.
5. UES is already managing pre-primary, primary and secondary Gujarati and English Medium Schools called "MM High School".
6. SHRI KIRTIKUMAR AND SHRI SANDEEP promoters of Harish Textile Engineers Pvt. Ltd. (HTEPL) (part of the HARISH GROUP which is a pioneer of industries in Umargam; having set up their industry in Umargam in 1966) offered to assist UES to set up a new English Medium School from classes Nursery to 10th and to also assist to set up at a later stage colleges, educational or other institutions for teaching, coaching, imparting knowledge, guidance, counselling or vocational training in any discipline in general and in particular to set up colleges or institutes for engineering, science, arts, commerce, management, medical, vocational, and technical education(hereinafter collectively called the NEW EDUCATIONAL INSTITUTE OR NEI).
7. The Trustees and Managing Committee of UES, after due deliberations, reached an unanimous decision that it would be prudent and expedient and for diverse other reasons of better administration, service to the students and better accountability,(and to retain the rich heritage and Goodwill of over a Century of UES) for the NEI to be managedby/under separate trust (to be set up under the auspices of UES).
8. Pursuant to the aforesaid decision, the SETTLOR as the trustee of UES settled a sum of Rs. 5,000 (Rupees Five thousand) out of the funds of UES unto and upon a PUBLIC CHARITABLE TRUST and the TRUSTEES agreed to become the First Trustees of the said TRUST and to hold the said amount of Rs. 5,000 (Rupees Five Thousand) upon trust and covenants hereinafter recorded.
9. The parties hereto are desirous of recording the diverse terms and conditions and covenants governing the said TRUST.

Smt. S. S. Shah



THIS DEED OF TRUST NOW RECORDS AND WITNESSETH AS UNDER:

1. SETTLEMENT OF TRUST:

The TRUSTEES confirm that they have accepted from the SETTLOR a sum of Rs. 5,000 (Rupees Five Thousand) out of the funds of UES to be held by them as trustees of a PUBLIC CHARITABLE TRUST upon terms and covenants of trusts hereinafter recorded. The TRUSTEES acknowledge having received the said sum as under:

- a). Rs. 1,000 (Rupees one thousand) in cash and
- b). Rs. 4,000 (Rupees Four Thousand) by cheque number dated drawn on

2. NAME OF THE TRUST

The name of the trust shall be "THE UES AGRATHA EDUCATION TRUST".

The Trust is being settled under the auspices of UES.

3. PLACE

The principal office of the Trust shall be situated at Umargam Education Society, Umbergaon Town, Behind Umbergaon Police Station, Umbergaon-396170 Gujarat or such other place(s) as the Trustees may from time to time decide. The Trust may also carry on its OBJECTS at any other place or places, as may be decided by the Trustees.

4. BENEFICIARIES

The trust is meant for the benefit of Public at Large without any restrictions or reservations for any caste or creed.

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5. OBJECTS OF THE TRUST

- I. **Educational** – to set up, establish, operate, run, maintain, manage or assist schools, colleges, educational or other institutions for teaching, coaching, imparting knowledge, guidance, counseling or vocational training in any discipline in general and in particular to set up and manage English medium school(s) and to set up college or institutes for engineering, science, arts, commerce, management, medical, vocational, and technical education on “not for profit” basis.
- II. **Medical** – to set up, establish, run, maintain manage or assist hospitals, medical institutions, nursing home or clinics on a “not for profit” basis and/ or to grant assistance to needy and indigent persons for meeting the cost of medical treatment.
- III. **Relief of the poor** – to give financial or other assistance in kind by way of distribution of books, notebooks, cloths, uniforms, or meals for the poor and needy and to the persons who may suffer due to natural calamities or to undertake any work or project or development as may benefit the poor and the needy.
- IV. **SCHOLARSHIPS AND GRANTS**- To grant scholarships, freeships, grant to the poor, needy and deserving students as also to make donations and grants to institutions having similar objectives.
- V. To undertake any project or work as may be deemed fit for the relief and development of Rural India or as may be deemed fit for the welfare and development of society or as may advance any other object of general public utility.



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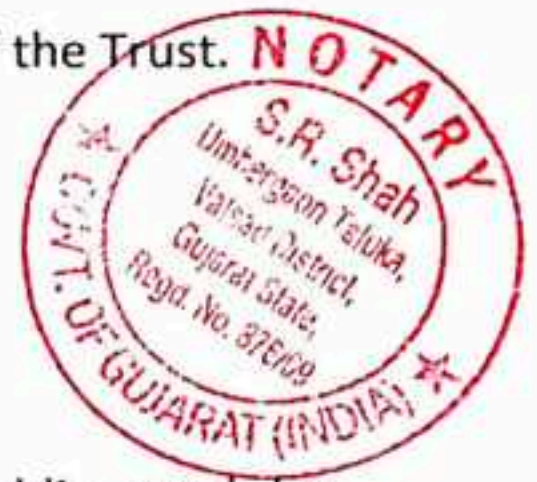
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VI. To do everything for attainment of the Objects of the Trust.



VII. Other objects of general public utility –

- 1 to acquire property for the use for public good by making it available for public purposes as for example, housing a library, clinic, crèche, sports facilities and/or as a community hall or facilities to be available for public use as training classes, seminars, discourses and other public functions for benefit of the community in general.
- 2 to undertake any other activity incidental to the above activities and which are not inconsistent with the above objects.

PRVIDED that the trust may assist/donate to the other TRUST(S) having objects similar to the objects of the TRUST as part of fulfillment of the Objects of the TRUST in such manner and to such extent as the Trustess may decide.

6 FUNDS

The Trustees may accept donations, grants, subscriptions, aids or contributions, including corpus donations from any person, Government, Local authorities or any other charitable institutions, in cash or in kind including immovable property without any encumbrance, but the Trustees shall not accept any receipt with any condition or terms inconsistent with the objects of the Trusts. While applying such receipts

to the objects of the Trust, the Trustees shall respect the directions, if any, by the granter. Any receipt with specific direction to treat the same as part of the corpus of the Trust or separate fund shall be funded accordingly.



7 INVESTMENTS

- I. All monies, which shall not immediately be required for current needs shall be invested by the Trustees in eligible securities and investments, or in banks. Such investments shall be in the name of Trust or Trustees as may be permissible by the relevant law from time to time.
- II. That the trustees shall manage the trust fund and investments thereof as a prudent man would do the same. They shall recover all outstanding and meet all recurring and other expenses incurred in the upkeep or management thereof.
- III. That the trustees shall receive and hold the income of the trust on behalf and for the benefit of the beneficiaries under the trust and to fulfill the objects of the Trust



CORPUS FUNDS

The amount settled herein as also any specific corpus donations received by the trust shall form part of the corpus of the trust

9. APPLICATION OF TRUST FUND

All the trust funds of the trust including the corpus funds shall be used only for the objects of the trust. None of the trustees or their relatives or their related companies or concerns shall directly or indirectly get or take any benefits from

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the trust or from any property or funds of the trust or in any other manner without paying proper and fair consideration for such benefit.

10 TRUSTEES

- I. There shall be a minimum of three trustees of the Trust at all times. The maximum number of trustees shall be FOURTEEN.
- II. Subject to and read with clause V here after, in case of demise or resignation of any trustee or in case of any trustee vacating his office for any reason, the other trustees shall have power to appoint any other suitable person to fill up such vacancy and such power shall be exercised by the trustees to ensure that there are minimum three trustees at all times.
- III. A Trustee shall be disqualified from continuing to act as such or to be appointed as a trustee if: (a) He is adjudged an insolvent, (b) He is declared to be of unsound mind. (c) He is convicted for any offense and sentenced to imprisonment for any term. (d) He is otherwise disqualified from being or continuing as a trustee under any of the relevant laws. (e) He abstains from attending three meetings out of five such meetings of the trustees without prior leave of absence.
- IV. A trustee may resign as a trustee by giving a minimum thirty days' notice.
- V. SHRI KIRTIKUMAR SHANTILAL GANDHI FAIMILY (HEREIN AFTER CALLED KSG FAMILY which term shall include his family members for the time being, his successors or legal heirs and lineal descendants) shall have the right to nominate and appoint maximum of seven trustees and UES shall have the right to



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nominate and appoint maximum of seven Trustees. In an event of death, or resignation of any of the trustees or his ceasing to be a trustee for any reason, KSG FAMILY or UES, as the case may be shall have the right to nominate any other trustee in the place and stead of the outgoing trustee.

- VI. A trustee may be removed as a trustee only if 75% of the total strength of the trustees so agree upon at a duly convened meeting of the trustee by giving a minimum thirty days' notice to the concerned trustee and the concerned trustee is also given a proper opportunity of hearing at this meeting.
- VII. The trustees can make their own rules and regulation for conduct of their meetings and for other matters pertaining to the objects of the trust and the activities of the trust including appointment of managing committees and sub-committees, advisory boards and delegation of powers to such committees/board.

11. MANAGEMENT OF THE TRUST

- I. The TRUSTEES for the time being shall have the powers of management of the Trust.
- II. The Trustees may form a Managing Committee comprising of Trustees and other suitable/eminant persons upon such terms as they may deem fit. The Managing Committee, shall comprise of such of the Trustees from out of the trustees for the time being and other members as the Trustees may decide. The Trustees may delegate to the Managing



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Committee such powers of management of the trust and upon such terms as they may deem fit.

- III. The trustees/managing committee shall have power to form sub-committees or advisory committees from among themselves or by inducting suitable persons as they may deem fit and upon such terms as they may deem fit. However, each such sub-committees or advisory committee shall have one the trustees/managing committee member as chairman thereof and the trustees/managing committee may delegate such of their powers as they may deem fit to such committees or they may act on the advice of such committees.

14.OFFICE BEARERS:

ICHAIRMAN

The trustees may appoint any one of the trustees as the Chairman of the Trust upon such terms and delegate to the Chairman such powers as the Trustees may deem fit. The Chairman shall be appointed from the trustees nominated and appointed by KSG FAMILY.

II Vice-Chairman

The trustees may appoint any one of the trustees as the Vice-Chairman of the Trust upon such terms and delegate to the Vice-Chairman such powers as the Trustees may deem fit. The vice-



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Chairman shall be appointed from the trustees nominated and appointed by UES.

III Treasurer:

A treasurer including one or more joint treasurers may be appointed either by the Trustees from amongst themselves and/or by the managing committee from amongst themselves upon such terms and such powers as the electing forum may deem fit. The Treasurer shall generally be appointed from the trustees or managing committee members as may be nominated by KSG FAMILY.

IV Secretary:

A Secretary including one or more joint secretaries may be appointed either by the Trustees from amongst themselves and/or by the managing committee from amongst themselves upon such terms and such powers as the electing forum may deem fit. The Secretary shall generally be appointed from the trustees or managing committee members as may be nominated by KSG FAMILY.

15. POWER OF TRUSTEES

The Trustees for the time being shall have the following Powers

- I. To manage all the assets and properties of the trust
- II. to appoint employees and other professionals and consultants as they may deem fit and to settle the terms of their service, remuneration and termination;
- III. to look into the management of the trust;
- IV. to invest the funds of the trust in any of the modes as may be specified by applicable laws, in the purchase of movable and



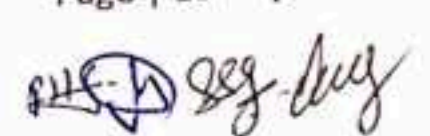
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movable and immovable properties as may be required for the objects and purposes of the trust or any of the trust activities;

- V. to sell, alter, vary, transpose or otherwise dispose or alienate the trust properties or any investment representing the same for consideration and to reinvest the same;
- VI. to pledge or mortgage the trust properties for raising loans as may be required for the objects of the trust;
- VII. to open the bank accounts in the name and on behalf of the trust and to operate the same;
- VIII. To pay all charges, impositions and other outgoings payable in respect of the trust properties and also to pay all costs incidental to the administration and management of the trust properties;
- IX. To file suit on behalf of the trust and to refer to arbitration all actions proceedings and disputes touching the trust properties and to compromise and compound the suits filed;
- X. To accept any gift, donation or contribution in cash or in kind from anyone for the objects of the trust;
- XI. To make such Rules and Regulations or Bye Laws as would govern the management of the Trust, the meeting of Trustees, Managing Committees, Advisory Committee, Sub-Committees or in relation to any other aspects concerning the functioning of the Trust as the Trustees may deem fit.
- XII. To appoint and engage any lawyers, chartered accountants or any other professionals and to seek their advice and to rely on and act on such advice for the objects of the trust and to pay for such professional fees.



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- XIII. To accept the resignation of any of the trustees and to appoint one or more trustees as may be mutually decided by the trustees.
- XIV. Without limiting the above specific powers, the trustees shall have all such powers as may be reasonably required to do anything for the attainment of the objects of the trust or for carrying on any activity as may be authorized from time to time by the Trust Deed.

All the decisions of the Trustees, (unless otherwise provided in Bye Laws or Rules and Regulations) shall be taken by a simple majority of the Trustees present and voting at a duly convened meeting having required quorum and in case of a tie in votes the chairman for the time being shall have the additional casting vote.

14. ACCOUNTING YEAR, ACCOUNTS AND AUDIT:

The financial year of April to March shall be the accounting year of the trust.

The first accounting year of the trust shall be a period commencing from the date of the settlement of the trust till 31st March, 2015.

The trustees shall cause to be maintained proper accounts of all the receipts and payments of the trust as also of all the income and expenses of the trust and all the assets and liabilities thereof. Such accounts shall be caused to be audited as per the requirement of the concerned laws.

15 BANKING

All income, receipts, subscription and pecuniary donations of the Trust and the income, investments and all other moneys from time to time forming part of the general revenue of the Trust shall on the same being received be paid

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into a banking account (s) of the Trust. All the payments, expenses and outgoings of the Trust shall also be made out of the Bank Account (s) of the Trust. The bank account(s) of the Trust shall be opened in the Name of the Trust with such Bank(s) and shall be operated in such manner as the Trustees may decide from time to time.

16 ACCOUNTS AND AUDIT

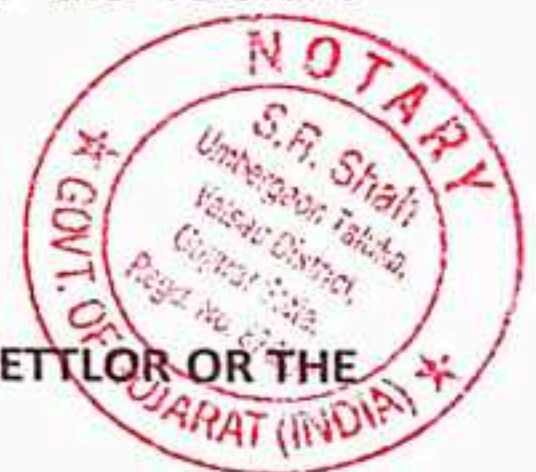
- I. The Trustees shall keep proper books of account of all the assets, liabilities, income and expenditure and receipts and payments of the Trust and shall prepare an Income and Expenditure Account and Balance Sheet for every year as on the last day of March.
- II. The accounts of every year shall be audited by a Chartered Accountant or a firm of Chartered Accountants who shall be appointed for that purpose by the Trustees and the audited accounts shall be placed at a meeting of the Trustees, which shall be held as expeditiously as possible but in any case not later than six months from the end of the relevant accounting year/period.

17. IRREVOCABLE

THE TRUST HEREBY SETTLED SHALL BE IRREVOCABLE BY THE SETTLOR OR THE TRUSTEES.

18 AMALGAMATION

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- I. The trustees may amalgamate the trust with UES only with prior permission of the Charity commissioner/Court/any other law/authority as may be applicable for the time being.
- II. The Trustees may amalgamate the Trust with another Charitable Trust or Institution having similar objects only with the prior consent of UES.

19 PUBLIC CHARITABLE TRUST

The Trust Herein shall be a Public Charitable Trust and shall accordingly be registered under the Bombay Public Charitable Trust Act and/or under any other laws or Rules as may be applicable from time to time.

20 COVENANT BY UES AND THE TRUST

UES covenants and undertakes that:

- I. The proposed NEI is being set up near the present school of UES on the property of the UES. For ready reference a plan of the property and lands in possession of the UES is enclosed herewith. It is confirmed and covenanted that the NEI shall be set up in the portion of the property colored RED in the plan enclosed herewith. It is also confirmed that the Trust settled herein shall have uninterrupted and peaceful use of the said portion of the property (colored red in the plan enclosed hereto) till the duration of the Trust and that UES shall neither encumber or create any charge on the said portion of property in any manner whatsoever nor shall it do anything at all as may disturb the peaceful possession and use of the said portion by the Trust for managing the NEI.



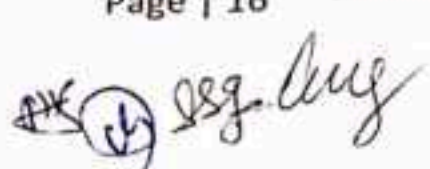










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- II. UES shall ensure that the lease for the property is promptly renewed and that the property taxes and other charges concerning the property are duly paid and that UES shall at all times ensure that the peaceful and uninterrupted possession of the property is available to UES and the Trust at all times.

The TRUST covenants and undertakes that:

- I. it will use the property only for the objects of the Trust
- II. The Trust undertakes to promptly pay its share of property tax, lease rent and other charges.

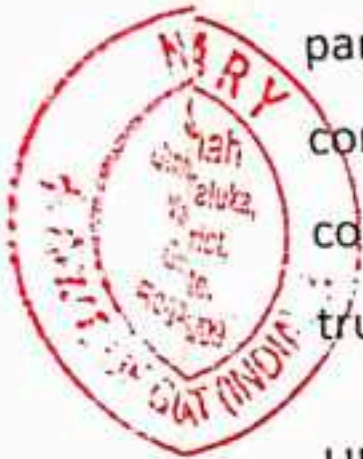
COMMON FACILITIES

The proposed canteen facilities, playground and sports facilities, proposed party plot, school compound and stage, bore wells, transformer, power connection, proposed utility store on the school campus, proposed bus and conveyance facilities for students and staff shall be common for use both the trusts/schools.

UES also agrees in principle to allow the use of some of the classes from the present school premises as may be required from time to time by the NEI for conduct of Gujarat State Board English Medium classes.

21 WINDING-UP

In the event of dissolution or winding up of the Trust the assets remaining as on the date of dissolution shall under no circumstances be distributed amongst the Trustees but the same shall be transferred back to UES.



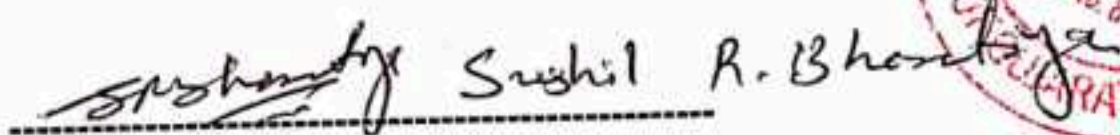
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IN WITNESS WHEREOF, THE PARTIES HERETO HAVE SET AND
SUBSCRIBED THEIR RESPECTIVE HANDS ON THE DAY AND DATE
HEREINABOVE WRITTEN.

SIGNED AND DELIVERED BY THE WITHINNAMED
SETTLOR SHRI RAMANLAL R. BHARATIA



IN THE PRESENCE OF



SIGNED AND DELIVERED BY THE WITHINNAMED
FIRST TRUSTEES


1. SHRI PRABODH H. SANJANVALA


2. SHRI KIRTIKUMAR S. GANDHI


3. SHRI ISHWAR G. BARI





4. SHRI SANDEEP K. GANDHI



NOTARY



5. SHRI ULHAS I. TANDEL





6. SHRI BANKIM K. SHAH





7. SHRI KIRAN S. MEHTA

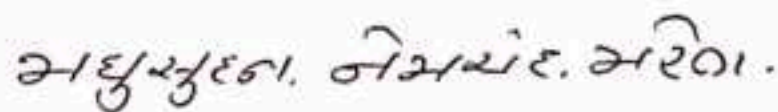


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8. DR. SATISH M. SANJANVALA



NOTARY



9. SHRI MADHUSUDAN N. MEHTA



NOTARY

